

thing. The Supreme Court has observed that there may be a rule which imposes an obligation on an individual or authority and yet it may not be enforceable in a court of law and, therefore, not give rise to a corresponding enforceable right in another person. But it would still be a legal rule because it prescribes a norm of conduct to be followed by such individual or authority. Thus, rights and duties are correlative, and they give the effect to each other.

**162. Which one of the following statements is correct?**

- (a) Rights are claims of the State against the citizens
- (b) Rights are privileges which are incorporated in the Constitution of a state
- (c) Rights are claims of the citizens against the State.
- (d) Rights are privileges of a few citizens against the many

**U.P.P.C.S. (Pre) 2017**

**Ans. (c)**

Rights are essential for the complete development of human beings. The importance of rights has expanded immensely and has given birth to the concepts of 'fundamental rights' 'human rights', etc. Rights impose restrictions on the powers of the state. These are a guarantee against state action. Thus, rights are claims of the citizens against the state.

**163. The concept of 'Right to Service' originated in**

- (a) The United States of America
- (b) Switzerland
- (c) Great Britain
- (d) China

**Uttarkhand P.C.S. (Pre) 2016**

**Ans. (c)**

The concept of 'Right to Service' originated in Great Britain (U.K.). Right to service refers to laws which guarantee time-bound delivery of services for various public services rendered by the Government to citizens. The Right of Citizens for Time-bound Delivery of Goods and Services and Redressal of their Grievances Bill, 2011 was an attempt to start such a law in India. However, it could not be passed. Notably, Madhya Pradesh is the first state in the country to implement the Right to Services Act on 25 September, 2010. Bihar is the second state to implement such law on 15 August, 2011.

**164. The aim of citizen's charter is not -**

- (a) Quality and time frame service delivery
- (b) Citizen friendly governance
- (c) Accountable Government
- (d) To create effective hearing system of public demands
- (e) Question not attempted

**Raj. P.C.S. (Pre) 2024**

**Ans. (d)**

The basic objective of the citizen's Charter is to empower the citizens in relation to public service delivery areas, like improvement of quality and provision of standard services with the taxpayer's money. The charter is a document that outlines the commitments of a government or public service organization towards providing efficient, transparent and accountable services the citizens. Therefore, a quality and time frame service delivery, Citizen friendly governance and Accountable government, but creating an effective hearing system of public demands is the aim of citizen charter.

## Directive Principles of State Policy

\*The Directive Principles of State Policy are mentioned in Part IV of the Indian Constitution from Articles 36 to 51.

\*The idea of Directive Principles of State Policy is borrowed from the Irish Constitution.

\*Article 37 deals with the application of the principles contained in this part.

\*The Directive Principles are **non – justiciable**. \*The Constitution (Article 37) itself says that these principles are fundamental in the governance of the country and **it shall be the duty of the State to apply these principles in making laws.**

\*They embody the concept of a 'Welfare State'. \*Article 38 says, the State to secure a social order for the promotion of the welfare of the people. \*Article 39A, added by the 42<sup>nd</sup> Amendment, provides for the **equal justice and free legal aid for Poor.**

\*Organisation of Village Panchayats (Article 40). \*Right to work, to education and to public assistance in certain cases (Article 41). \*According to the Article 42, The State shall make provision for securing just and humane conditions of work and for maternity relief. According to Article 43, The State Shall endeavour to secure, all workers, work and living wage, and to promote the cottage industry. \*Participation of workers in the management of industries (Article 43 A). \*Promotion of cooperative societies (Article 43 B). \*Uniform Civil Code for the citizens (Article 44). \*Provision of early childhood care and education to children below the age of six years (Article 45). \*Promotion of educational and economic interests of scheduled castes, scheduled tribes and other weaker sections (Article 46). \*It is the duty of the State to raise the level of the nutrition and the Standard of living and to improve public health (Article 47). \*Organisation of Agriculture and Animal Husbandry (Article 48). \*Article 48A provides for the protection and improvement,

and safeguarding of forests and wildlife. \*Article 49 provides for the protection of monuments, and places and objects of national importance. \*Separation of judiciary from executive (Article 50). \*Promotion of international peace and security (Article 51).

| Difference between Fundamental Rights and Directive Principles-                                       |                                                                                                    |
|-------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------|
| Fundamental Rights                                                                                    | Directive Principles                                                                               |
| 1. These are Justiciable, i.e. they are legally enforceable by the courts in case of their violation. | These are non-justiciable i.e. they are not legally enforceable by the courts for their violation. |
| 2. These are negative in nature.                                                                      | These are positive in nature                                                                       |
| 3. These have legal sanctions                                                                         | These have moral and political sanctions.                                                          |
| 4. They aim to establish political democracy.                                                         | They aim to establish social and economic democracy.                                               |
| 5. Promotes welfare of the individual.                                                                | Promotes community welfare.                                                                        |
| 6. They are automatically enforced                                                                    | They require legislation for their implementation.                                                 |

**1. The purpose of the inclusion of Directive Principles of State Policy in the Indian Constitution is to establish:**

- (a) Political Democracy
- (b) Social Democracy
- (c) Gandhian Democracy
- (d) Social and Economic Democracy

**I.A.S. (Pre) 2002**

**Ans. (d)**

The purpose of Directive Principles of State Policy is to establish social and economic democracy. This will help India grow as a welfare state.

**2. Which one of the following is not the objective of the Directive Principles of State Policy?**

- (a) To establish a welfare State.
- (b) To ensure socio-economic Justice
- (c) To establish a Religious State
- (d) To establish a Secular State

**U.P.R.O./A.R.O. (Mains) 2013**

**U.P.P.C.S. (Mains) 2017**

**Ans. (c)**

Articles 36 to 51 of the Constitution of India contain the Directive Principles of State Policy. The aim of the Constitution makers was to establish a secular and democratic state to ensure socio-economic justice.

**3. How are the Directive Principles of State Policy different from Fundamental Rights?**

- (a) Former is for Union Government and later is for state Government.
- (b) Former is a part of Constitution whereas later is not.
- (c) Directive Principles are not enforceable whereas Fundamental Right can be enforced.
- (d) None of these.

**I.A.S. (Pre) 2009**

**Ans. (c)**

The Directive Principles of State Policy are different from Fundamental Rights as Directive Principles are non-justiciable, so they cannot be enforced in any court of law, but Fundamental Rights are enforceable.

**4. The 'Directive Principles' are.....**

- (a) Justifiable
- (b) Non-justifiable
- (c) Rigid
- (d) Flexible

**M.P.P.C.S. (Pre) 2013**

**Ans. (b)**

The fundamental right are justifiable whereas the Directive Principles of State Policy are not justifiable.

**5. Consider the following statements:**

**With reference to the Constitution of India, the Directive Principle of State Policy constitute limitations upon**

- 1. legislative function.
- 2. executive function.

**Which of the above statement is/are correct?**

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

**I.A.S. (Pre) 2017**

**Ans. (d)**

The Directive Principles of state policy are certain directions to the Legislative, and the Executive intended to show in what manner the state should exercise their legislative and executive power. The Directive Principles are in nature an instrument of instruction to the Government to do certain things and to achieve certain ends by their actions.

The Directives are not enforceable in the Court and do not create any justiciable rights in favour of the individual. Thus the Directive Principles of State policy do not constitute limitation upon legislative or executive function of the Government.

6. With reference to the provisions contained in Part IV of the Constitution of India, which of the following statements is/are correct?

1. They shall be enforceable by Courts.
2. They shall not be enforceable by any Court.
3. The principles laid down in this part are to influence the making of law by the State.

Select the correct answer using the code given below:

- (a) 1 only
- (b) 2 only
- (c) 1 and 3 only
- (d) 2 and 3 only

I.A.S. (Pre) 2020

Ans. (d)

Article 37 of the Indian Constitution says that the Provisions contained in Part IV of the Constitution shall not be enforceable by any court, but the principles therein laid down are nevertheless fundamental in the governance of the country and it shall be the duty of the State to apply these Principles in making laws. So, the directive principles are non-Justiciable. Hence, statement 1 is wrong, while statement 2 and 3 are correct.

7. Which Article of the Indian constitution says that Directive Principles of State Policy are not enforceable by any court?

- (a) Article 39
- (b) Article 38
- (c) Article 36
- (d) Article 37

Jharkhand P.C.S. (Pre) 2023

Ans. (d)

Article 37 of the Indian Constitution says that the Provisions contained in part IV of the Constitution shall not be enforceable by any court.

8. Consider the following statements with respect to Directive Principles of State Policy :

1. They are not enforceable by the Courts.
2. It shall be the duty of the State to apply these Principles in making laws.

Select the correct answer using the code given below :

Code-

- (a) Only 2
- (b) Both 1 and 2

(c) Only 1

(d) Neither 1 nor 2

UP R.O./A.R.O. (Pre) 2023

Ans. (b)

The Indian Constitution lays down certain Directive Principles of State Policy, which, though not justiciable, are fundamental in the governance of the country, and it is the duty of the State to apply these principles in making laws.

9. Consider the following statements regarding the Directive Principles of State Policy :

1. These principles spell out the socio-economic democracy in the country.
2. The provisions contained in these Principles are not enforceable by any court.

Which of the statements given above is/are correct?

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

I.A.S. (Pre) 2015

Ans. (c)

The Directive Principles of State Policy are directives to the Government to implement them for establishing social and economic democracy in the country. The provisions contained in these principles are not enforceable by any court. These principles have been stated as "Fundamental in the governance of the country."

10. Regarding the Directive Principles of State Policy, which one of the following statements is not correct?

- (a) It is the duty of the State to apply these principles in making laws.
- (b) They are fundamental in governance of the country.
- (c) They impose a legal duty on the State.
- (d) They are merely instructions to legislature and executive.

Uttarakhand P.C.S. (Pre) 2024

Ans. (c)

According to the Article 37 of the Constitution, the provisions contained in the Part IV (Directive Principles of State Policy) are not enforceable by any court, but these principles are fundamental in the governance of the country and it is the duty of the State to apply these principles in making laws. These principles being non-enforceable can not impose a legal duty, but they lay down moral ideals for the State. The principles are merely instructions to guide the legislature and executive. These directives or instructions are not binding on the State.

**11. The concept of welfare state is included in the Constitution of India in the:**

- (a) Directive Principles of State Policy
- (b) Fourth Schedule of the Constitution
- (c) Fundamental Rights
- (d) Preamble of the Constitution

**I.A.S. (Pre) 2015**

**U.P. Lower Sub. (Pre) 2004**

**Uttarakhand P.C.S. (Pre) 2002**

**41<sup>th</sup> B.P.S.C. (Pre) 1994**

**Ans. (a)**

The concept of a welfare State is included in the Constitution of India in part IV, i.e. Directive Principles of State Policy, as described in Article 36 to Article 51 of the Constitution.

**12. Which part of the Constitution of India declares the ideal of Welfare State?**

- (a) Directive Principles of State Policy
- (b) Fundamental Rights
- (c) Preamble
- (d) Seventh Schedule

**I.A.S. (Pre) 2020**

**Ans. (a)**

See the explanation of the above question

**13. Which part of Constitution of India describes the model of Welfare State?**

- (a) Fundamental Rights
- (b) Fundamental Duties
- (c) The Preamble
- (d) Directive Principles of State Policy

**U.P. Lower Sub. (Mains) 2013**

**U.P.P.C.S. (Mains) 2004**

**Ans. (d)**

See the explanation of the above question

**14. The idea of India as Welfare State is found in-**

- (a) Preamble of the Constitution
- (b) Fundamental Duties
- (c) Directive Principles of State Policy
- (d) Both (a) and (c)

**U.P.P.C.S. (Pre) 1997**

**Ans. (d)**

The idea of India as a welfare State is found in the Preamble of the Constitution as well as the Directive Principles of State Policy. The Preamble gives importance to constituting India into Sovereign, Socialist, Secular, Democratic Republic. In the same way, the Directive Principles guide both the Centre and the states for the establishment of a welfare State.

**15. The Directive principles of State Policy may be classified in to which of the following parts for the sake of convenient study?**

- (a) Socialist
- (b) Liberal intellectualistic
- (c) Gandhian
- (d) All of the above

**U.P.P.C.S. (Pre) 2018**

**Ans. (d)**

The constitution does not contain any classification of Directive Principles. However on the basis of its content and direction, they can be classified into three broad categories, viz, socialistic, Gandhian and liberal - intellectual.

**16. The Directive Principles of State Policy of the Constitution of India is taken from the Constitution of which country?**

- (a) Australia
- (b) America
- (c) France
- (d) Ireland

**U.P. Lower Sub. (Pre) 2015**

**Jharkhand P.C.S. (Pre) 2003**

**Ans. (d)**

The framers of the Constitution were influenced by the Irish Constitution to add the provisions of Directive Principles of State Policy in the Indian Constitution.

**17. The Indian Constitution borrowed the Directive Principles of the State Policy from the Constitution of which of the following countries?**

- (a) United Kingdom (U.K.) Britain
- (b) United States of America (U.S.A.)
- (c) Ireland
- (d) Japan

**U.P.P.C.S. (Mains) 2005**

**U.P.P.C.S. (Pre) 1994**

**Ans. (c)**

See the explanation of the above question.

**18. In Indian Constitution, the idea of the Directive Principles of State Policy has been taken from the Constitution of –**

- (a) Ireland
- (b) Canada
- (c) South Africa
- (d) Australia

**U.P.P.C.S. (Spl) (Mains) 2008**

**Ans. (a)**

See the explanation of the above question.

**19. Directive Principles of State Policy are-**

- (a) Justiciable
- (b) Non-Justiciable

- (c) Fundamental Rights (d) None of these

U.P. Lower Sub. (Pre) 2004

M.P.P.C.S. (Pre) 1992

Ans. (b)

Directive Principles are non-justiciable, which means they are not enforceable in any court of law in India.

20. According to the Constitution of India, which of the following are fundamental to the governance of the country?

- (a) Fundamental Rights  
(b) Fundamental Duties  
(c) Directive Principles of State Policy  
(d) Fundamental Rights and Fundamental Duties

I.A.S. (Pre) 2013

Ans. (c)

Article 37 of the Constitution says that the Directive Principles are not enforceable in any Courts of Law in India, but are fundamental in the governance of the country. It will be the duty of the State to ensure that these principles are applied in the legislation of laws.

21. Under the Indian Constitution, concentration of wealth violates

- (a) the Right to Equality  
(b) the Directive Principles of State Policy  
(c) the Right to Freedom  
(d) the concept of Welfare

I.A.S. (Pre) 2021

Ans. (b)

Article 39 (Directive Principle of State Policy) of Indian Constitution state that -  
Certain principles of policy to be followed by the State: The State shall, in particular, direct its policy towards securing  
(a) that the citizens, men and women equally, have the right to an adequate means to livelihood;  
(b) that the ownership and control of the material resources of the community are so distributed as best to subserve the common good;  
(c) that the operation of the economic system does not result in **the concentration of wealth and means of production to the common detriment**;  
(d) that there is equal pay for equal work for both men and women;  
(e) that the health and strength of workers, men and women, and the tender age of children are not abused and that citizens are not forced by economic necessity to enter avocations unsuited to their age or strength;  
(f) that children are given opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity and that childhood and youth are protected against exploitation and against moral and material abandonment.

22. 'Equal Pay for Equal Work' has been ensured in the Indian Constitution as one of the:

- (a) Fundamental Rights  
(b) Directive Principles of State Policy  
(c) Fundamental Duties  
(d) Economic Rights

U.P.P.C.S. (Pre) 1998

U.P. Lower Sub. (Pre) 2004

U.P. U.D.A./L.D.A (Mains) 2010

Ans. (b)

'Equal Pay for Equal Work' has been ensured in the Indian Constitution in Article 39(d), enshrined in Part IV- Directive Principle of State Policy. It says that there should be equal pay for equal work for both men and women. It is noteworthy that the Article 14, Article 16 and Article 39 (d), together with the preamble, enabled the Supreme Court (in the case of Randhir Singh Vs Union of India, 1982) to deduce the right to Equal Pay for Equal Work as a fundamental Right. With respect to Art. 39(d) of the Indian Constitution, parliament passed Equal Remuneration Act, 1976.

23. Which one of the following is included in the Directive Principles of State Policy?

- (a) Protection in respect of conviction for offences.  
(b) Protection of life and personal liberty.  
(c) Protection of interest of minorities.  
(d) Equal pay for equal work for both men and women.

U.P.P.C.S. (Mains) 2012

Ans. (d)

See the explanation of the above question.

24. Which of the following is not a Fundamental Right?

- (a) Right Against Exploitation  
(b) Equal Pay for Equal Work  
(c) Equality Before Law  
(d) Right to Freedom of Religion

U.P.P.C.S. (Mains) 2014

Ans. (b)

See the explanation of the above question.

25. Panchayati Raj System in India is laid down under-

- (a) Fundamental Rights  
(b) Fundamental Duties  
(c) Directive Principles of State Policy  
(d) Election Commission Act

45<sup>th</sup> B.P.S.C. (Pre) 2001

Ans. (c)



Panchayati Raj System in India is laid down under the Directive Principles of State Policy (Part IV) under Article 40. According to this article, 'State shall take steps to organize village Panchayats and endow them with such powers and authority as may be necessary to enable these to function as units of self-government'.

**26. Which one of the following Articles directs the State Governments to organize the Panchayats?**

- (a) Article 33 (b) Article 40  
(c) Article 48 (d) Article 50  
(e) None of the above/More than one of the above

**64<sup>th</sup> B.P.C.S. (Pre) 2018**

**Ans. (b)**

Article 40- "to organise village Panchayats and endow them with necessary powers and authority, to enable them to function as units of self - government.

Article 33- Under Rights to Constitutional Remedies (Fundamental Rights), Power of Parliament to modify the rights conferred by this part in their application of forces, etc.

Article 48- To prohibit the slaughter of cows, calves and other milch and draught cattle and to improve their breeds.

Article 50- Separation of Judiciary from the executive.

**27. Which one of the following Articles directs State Government to organize Village Panchayats?**

- (a) Article 32 (b) Article 40  
(c) Article 48 (d) Article 51

**U.P.P.S.C. (GIC) 2017**

**U.P.P.C.S. (Pre) 2014**

**Ans. (b)**

See the explanation of the above question.

**28. Under the Constitution of India organization of village panchayat is a**

- (a) Fundamental Right (b) Fundamental Duty  
(c) Directive Principle (d) None of the above

**Uttarakhand P.C.S. (Pre) 2010**

**Ans. (c)**

See the explanation of the above question.

**29. Match List-I with List-II and select the correct answer using the codes given below the Lists :**

| List - I                                  | List - II     |
|-------------------------------------------|---------------|
| A. Formation of Village Panchayat         | 1. Article 44 |
| B. Uniform Civil Code                     | 2. Article 48 |
| C. Agriculture and Animal Husbandry       | 3. Article 50 |
| D. Separation of Judiciary from Executive | 4. Article 51 |

**E. Promotion of International Peace 5. Article 50 Codes**

|     | A                                              | B | C | D | E |
|-----|------------------------------------------------|---|---|---|---|
| (a) | 3                                              | 4 | 2 | 1 | 5 |
| (b) | 5                                              | 3 | 2 | 1 | 4 |
| (c) | 2                                              | 3 | 5 | 4 | 1 |
| (d) | 1                                              | 5 | 3 | 4 | 2 |
| (e) | None of the above / More than one of the above |   |   |   |   |

**66<sup>th</sup> B.P.S.C. (Pre) (Re- Exam), 2020**

**Ans. (e)**

The correctly matched list is as follows:

| List-I                                  | List-II      |
|-----------------------------------------|--------------|
| Organization of Village Panchayat       | - Article 40 |
| Uniform Civil Code                      | - Article 44 |
| Agriculture and Animal Husbandry        | - Article 48 |
| Separation of Judiciary from Executive  | - Article 50 |
| Promotion of International Peace        | - Article 51 |
| Thus, option (e) is the correct answer. |              |

**30. Match List- I with List- II and select the correct answer using the code given below:**

| List- I<br>(Articles of the Constitution) | List -II<br>(Subject matter)                        |
|-------------------------------------------|-----------------------------------------------------|
| A. Art. 40                                | 1. Organization of Village Panchayat                |
| B. Art. 41                                | 2. Right to Work                                    |
| C. Art. 44                                | 3. Uniform Civil Code                               |
| D. Art. 48                                | 4. Organisation of Agriculture and Animal Husbandry |

**Code:**

|     | A | B | C | D |
|-----|---|---|---|---|
| (a) | 1 | 2 | 3 | 4 |
| (b) | 2 | 3 | 1 | 4 |
| (c) | 1 | 3 | 4 | 2 |
| (d) | 3 | 2 | 4 | 1 |

**U.P.P.C.S. (Pre) 2001  
U.P.U.D.A./L.D.A. (Pre) 2002**

**Ans. (a)**

The matched Articles are as follows:

Article 40: Organisation of Village Panchayats  
Article 41: Right to Work, education and public assistance in certain cases.  
Article 44: Uniform Civil Code for all citizens  
Article 48: Organisation of Agriculture and Animal Husbandry.

31. Which one of the following is NOT correctly matched?

- (a) Article 39A - Equal Justice and free legal aid  
(b) Article 40 - Organisation of Village Panchayats  
(c) Article 44 - Uniform Civil Code  
(d) Article 48 - Separation of Judiciary from Executive

U.P. P.C.S. (Pre) 2020

Ans. (d)

The correct matched order is as follows :

- Article 39A - Equal Justice and free legal aid  
Article 40 - Organisation of Village Panchayats  
Article 44 - Uniform Civil Code  
Article 48 - Organisation of Agriculture and Animal husbandry

32. Identify the correct pair mentioning the Directive Principles of State Policy in the Constitution of India-

- (a) Equal justice and free legal aid – Article 42  
(b) Organisation of agriculture and animal husbandry – Article 43  
(c) Organisation of village Panchayat – Article 41  
(d) That there is equal pay for equal work for both men and women – Article 39

R.A.S./R.T.S. (Pre) 2021

Ans. (d)

| Directive Principles of State Policy (DPSP)<br>Article related to DPSP |             |
|------------------------------------------------------------------------|-------------|
| Equal justice and free legal aid                                       | Art. 39A    |
| Organisation of agriculture and animal husbandry                       | Art. 48     |
| Organisation of village Panchayat                                      | Art. 40     |
| Equal pay for equal work for both men and women                        | Art. 39 (d) |

33. Match the following List - P (Directive Principles) with List - R (Articles):

List—P

List—R

- A. Equal justice and free legal aid I. Article 48 A  
B. Protection of the environment II. Article 39 A  
C. Right to Work III. Article 41  
D. Protection of Monuments IV. Article 49

Select correct option :

- A B C D  
(a) I III IV II  
(b) II I III IV

- (c) III I IV II  
(d) II III I IV  
(e) Question not attempted

Raj. P.C.S. (Pre) 2023

Ans. (b)

The correct matches are the following  
Equal justice and free legal aid- Article 39A  
Protection of environment-Article 48A  
Right to work-Article 41  
Protection of monuments- Article 49

34. Which one of the following is NOT correctly matched?

- | (Subject)                                                                                              | (Related Articles) |
|--------------------------------------------------------------------------------------------------------|--------------------|
| (a) The separation of judiciary from executive                                                         | -Article 50        |
| (b) The promotion of educational and economic interests of Scheduled Castes and Scheduled Tribes       | -Article 46        |
| (c) The promotion of Co-operative Societies                                                            | -Article 43A       |
| (d) The organisation of Village Panchayats and enable them to function as the units of self government | -Article 40        |

U.P.P.C.S. (Pre) 2021

Ans.(c)

Under Article 43B of the Constitution of India: Promotion of Cooperative Societies. The state shall endeavour to promote voluntary formation, autonomous functioning, democratic control and professional management of co-operative societies. Article 43A provides for the participation of workers in the management of industries. All the rest are correct matches.

35. Given below are two statements, one labelled as Assertion (A) and the other as Reason (R) :

Assertion (A) : MGNREGA is providing employment to at least one member of the eligible household for a minimum period of 100 days in a year.

Reason (R) : Right to employment is enumerated in Part III of the Constitution.

Select the correct answer from the code given below:

Code :

- (a) Both (A) and (R) are true, and (R) is the correct explanation of (A).  
(b) Both (A) and (R) are true, but (R) is not a correct explanation of (A).

- (c) (A) is true, but (R) is false.  
(d) (A) is false, but (R) is true.

**U.P. Lower Sub. (Mains) 2013**

**Ans. (c)**

"Mahatma Gandhi National Rural Employment Guarantee Act (MGNREGA )" is an Indian labour law and social security measure that aims to guarantee the "Right to Work". It aims to ensure livelihood security in rural areas by providing at least 100 days of employment in a financial year to every household whose adult member volunteers to do unskilled manual work. This Act aims to follow the Directive Principles of State Policy.

**36. MANREGA scheme has been launched as a part of implementing which one of the following Articles of the Indian Constitution?**

- (a) Article 43 (b) Article 45  
(c) Article 47 (d) Article 50

**U.P. U.D.A./L.D.A. (Pre) 2010**

**Ans. (a)**

Article 43 of Part IV (Directive Principles of State Policy) of the Constitution provides that "State shall endeavour to secure, by suitable legislation or economic organisation or in any other way to all workers agricultural, industrial or otherwise work a living wage, condition of work ensuring a decent standard of life and full enjoyment of leisure and social and cultural opportunities". MANREGA is a flagship programme to achieve this Constitutional goal.

**37. Which of the following Article was inserted by the 42<sup>nd</sup> Constitution Amendment to provide for participation of workers in management?**

- (a) Article 38 (b) Article 39A  
(c) Article 45 (d) Article 43A

**U.P. P.C.S. (Pre) 2019**

**Ans. (d)**

Article 43 A of the Constitution of India provides for the participation of workers in the management of industries. As per this Article, the State shall take steps, by suitable legislation or in any other way, to secure the participation of workers in the management of undertaking, establishment or other organization engaged in any industry". This provision was added to the Indian constitution by the 42nd Constitutional Amendment Act, 1976.

**38. Which Article of the Constitution of India has the provision of participation of workers in management of industry?**

- (a) Article 43 (b) Article 43A  
(c) Article 45 (d) Article 47

**U.P.P.C.S. (Pre) 2019**

**U.P. Lower Sub. (Pre) 2009**

**Ans. (b)**

See the explanation of the above question.

**39. Which of the following Articles of the Constitution of India talks about the Uniform Civil Code (UCC)?**

- (a) Article 43 (b) Article 44  
(c) Article 45 (d) Article 46

**Jharkhand P.C.S. (Pre) 2023**

**Ans. (b)**

See the explanation of the above question.

**40. In India, separation of judiciary from the executive is enjoined by :**

- (a) the Preamble of the Constitution  
(b) a Directive Principles of State Policy  
(c) the Seventh Schedule  
(d) the conventional practice

**I.A.S. (Pre) 2020**

**Ans. (b)**

According to the Article 50 of the Constitution, the State shall take steps to separate the judiciary from the executive in the Public Services of the State. Hence, the separation of the Judiciary from the executive comes under the Directive Principles of State Policy (Part IV) of the Constitution.

**41. Which one of the following Articles of the Directive Principles of State Policy deals with the promotion of international peace and security?**

- (a) 51 (b) 48 A  
(c) 43 A (d) 41

**I.A.S. (Pre) 2002**

**Ans. (a)**

Article 51- of the Constitution of India deals with the promotion of International Peace and Security.

Article 41- Right to work, to Education and to Public assistance in certain cases.

Article 43A- Participation of workers in the management of industries.

Article 48A- Protection and improvement of environment and safeguarding of forests and wildlife.



**42. In the Constitution of India, Promotion of International Peace and Security is included in the –**

- (a) Preamble to the Constitution
- (b) Directive Principles of State Policy
- (c) Fundamental Duties
- (d) Ninth Schedule

**I.A.S. (Pre) 2014**

**Ans. (b)**

Article 51 in Part IV of the Constitution provides that the State shall endeavour to –

- (a) Promote International Peace and Security
- (b) Maintain just and honourable relations between nations;
- (c) Foster respect for international law and treaty obligations in the dealing of organized people with one another; and
- (d) Encourage Settlement of International disputes by arbitration.

**43. Which part of the Indian Constitution refers to the responsibility of the state towards International Peace and Security?**

- (a) Fundamental Rights
- (b) Fundamental Duties
- (c) Directive Principles of State Policy
- (d) Preamble of the Constitution

**U.P. P.C.S. (Mains) 2017**

**Ans. (c)**

See the explanation of the above question.

**44. Which Article of the Indian Constitution is related to Indian Foreign Policy?**

- (a) Article 380
- (b) Article 312
- (c) Article 60
- (d) Article 51

**U.P.P.C.S. (Pre) 2016**

**Ans. (d)**

See the explanation of the above question.

**45. Which of the following was not added to the Directive Principles by the 42<sup>nd</sup> Amendment of the Constitution?**

- (a) Protection of Children and youth from exploitation
- (b) Equal justice and free legal aid
- (c) Uniform civil code
- (d) Participation of workers in the management of industries

**U.P.P.C.S. (Pre) 1998**

**Ans. (c)**

In the above options, except Uniform Civil Code (Article 44), all were added by the 42<sup>nd</sup> Amendment of the Constitution. Article 39(f) : Protection of children and young from exploitation.

Article 39(A): Equal justice and free legal aid.

Article 43(A): Participation of workers in management of industries.

**46. Which principle among the following was added to the Directive Principles of State Policy by the 42<sup>nd</sup> Amendment to the Constitution?**

- (a) Equal pay for equal work for both men and women
- (b) Participation of workers in the management of industries
- (c) Right to work, education and public assistance
- (d) Securing living wage and human conditions of work to workers

**I.A.S. (Pre) 2017**

**Ans. (b)**

See the explanation of the above question.

**47. The Constitution grants right against exploitation to –**

- 1. Children
- 2. Women
- 3. Tribals
- 4. Dalits

**Choose your correct answer with the help of given code: Code :**

- (a) 1 and 2 only
- (b) 1 and 3 only
- (c) 1, 2 and 3 only
- (d) 2, 3 and 4 only

**U.P.P.C.S. (Mains) 2009**

**Ans. (c)**

The Constitution of India grants right against exploitation to children, women and tribals, but the word 'Dalit' is not mentioned in the Indian Constitution.

**48. Which one of the following is not a Directive Principle of State Policy ?**

- (a) Prohibition of the consumption of Intoxicating Drinks
- (b) Cow-Protection
- (c) Environment-Protection
- (d) Free Education to children up to the age of fourteen (14)

**U.P. U.D.A./L.D.A. (Pre) 2010**

**Ans. (d)**

In the Constitution, prohibition of the consumption of intoxicating drinks and cow protection is described under Article 47 and Article 48, respectively. Under Article 48A protection and improvement of the environment is provided. Provision for free and compulsory education for all children until they complete the age of fourteen years was mentioned under Article 45 of Directive Principles of State Policy but in 2002 (by the 86<sup>th</sup> Amendment) the above provision became the Fundamental Right under Article 21-A.

49. Which one of the following is not a Directive Principle of State Policy?

- (a) Prohibition of the consumption of intoxicating drinks.
- (b) Prohibiting the slaughter of cows and calves.
- (c) Protection and improvement of the environment.
- (d) Free education for children up to the age of 16 years.

U.P. Lower Sub. (Pre) 2013

Ans. (d)

See the explanation of the above question.

50. Which of the following is/are included in the Directive Principles of State Policy?

- 1. Prohibition of Trafficking in human beings and forced labour.
- 2. Prohibition of consumption except for medicinal purposes of intoxicating drinks and of other drugs which are injurious to health.

Select the correct answer using the code given below.

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither nor 2

I.A.S. (Pre) 2008

Ans. (b)

Prohibition on consumption except for medicinal purposes of intoxicating drinks and of other drugs which are injurious to health is mentioned under Article 47 of the Directive Principles of State Policy, whereas prohibition of trafficking in human beings and forced labour is mentioned under Article 23(1) of the fundamental rights. Therefore only statement 2 is correct.

51. Consider the following provisions under the Directive Principles of State Policy as enshrined in the Constitution of India –

- 1. Securing Uniform Civil Code for citizens of India.
- 2. Organizing Village Panchayats.
- 3. Promoting Cottage Industries in Rural Areas.
- 4. Securing for all the worker's reasonable leisure and culture opportunities.

Which of the above are the Gandhian Principles that are reflected in the Directive Principles of State policy?

- (a) 1, 2 and 4
- (b) 2 and 3
- (c) 1, 3 and 4
- (d) 1, 2, 3 and 4

I.A.S. (Pre) 2012

Ans. (b)

Articles 40, 47 and 48 are based on Gandhian principles. These Articles are as follows:

Article 40: Organisation of Village Panchayats.

Article 47: To raise the level of Nutrition and standard of living and to improve public health.

Article 48: Prevention of Cow Slaughter, Organisation of Agriculture and Animal Husbandry.

52. In which of the following 'the provisions for the protection and improvement of environment and safeguarding of forests and wildlife' are found in the Constitution of India?

- (a) Only in the Directive Principles of State Policy
- (b) Only in the Fundamental Duties
- (c) Both (a) and (b)
- (d) None of the above

U.P.P.C.S. (Pre) 2019

Ans. (c)

Article 48A in the Part IV (Directive Principles of State Policy) of the Indian Constitution has provisions for the protection and improvement of the environment and the safeguarding of forests and wildlife.

Similarly, according to Article 51A(g), it is the duty of every citizen of India to protect and improve the natural environment.

53. Which of the following Provision is a part of both Directive Principles of State Policy and Fundamental Duties?

- (a) Participation of workers in management of industries
- (b) Protection of environment
- (c) Guardians to provide opportunity for education to children
- (d) Uniform Civil Code

U.P.P.C.S. (Pre.) 2023

Ans. (b)

Under Part-4, 'Directive Principles of State Policy' according to Article 48A of Indian Constitution, the State shall endeavour to protect and improve the environment and to safeguard the forests and wild life of the country and Under Part 4A, 'Fundamental Duties' according to Article 51-A(g) of Indian Constitution, it is a fundamental duty of every citizen of India to protect and improve the natural environment including forests, lakes, rivers and wild life and to have compassion for living creatures. Hence, option (b) is the correct answer.

**54. Which one of the following is a Directive Principle of State Policy?**

- (a) The State shall endeavor to protect and improve the environment.
- (b) The State shall not deny equality to any person before the law.
- (c) The State shall not discriminate against any person on the grounds of religion, race, casts, sex or place or birth.
- (d) Untouchability enforcement.

**U.P.C.S. (Mains) 2009**

**Ans. (a)**

Article 48A (Directive Principles of State Policy) mentioned that the State shall endeavour to protect and improve the environment and to safeguard the forests and wildlife of the country.

**55. The Constitution is silent in the Directive Principles of State Policy about –**

- (a) Adult education
- (b) Living wages for workers
- (c) Free legal aid to the poor
- (d) Primary education to children till they complete the age of 6 years

**U.P. Lower Sub (Pre) 2008**

**Ans. (a)**

The provision for adult education is not mentioned in the Directive Principles of State Policy (Part-IV). Living wages for workers is mentioned in Article 43, Free legal aid to the poor is mentioned under Article 39A and provision for early childhood care and education to children below the age of six years is mentioned in Article 45 of the Directive Principles of State Policy.

**56. Which of the following Directive Principles of State Policy was added to the Constitution at a later date?**

- (a) Organization of Village Panchayats
- (b) Prohibition of Cow Slaughter
- (c) Free Legal Aid
- (d) Uniform Civil Code

**U.P.R.O./A.R.O. (Pre) 2014**

**Ans. (c)**

Article 39A of the Constitution provides for Free Legal Aid to the poor and weaker sections of the society and ensures justice for all. Equal Justice and Free Legal Aid (Article 39A) was inserted by the 42<sup>nd</sup> Constitutional Amendment Act, 1976.

**57. In Which year it was inserted in the Constitution of India that the State shall secure free legal aid to any citizen by reason of economic or other disabilities?**

- (a) 1978
- (b) 1976
- (c) 1975
- (d) 1979
- (e) Question not attempted

**Raj. P.C.S. (Pre) 2024**

**Ans. (b)**

The 42<sup>nd</sup> Constitutional Amendment Act, 1976 (w.e.f. 3/1/1977) inserted "Article 39A- Equal Justice and free legal aid" in the Directive Principles of State Policy (Part IV) of the Indian Constitution. This Article establishes that the State shall secure free legal aid to ensure that opportunities for securing justice are not denied to any citizen by reason of economic or other disabilities.

**58. With reference to National Legal Services Authority, consider the following statements:**

1. Its objective is to ensure free and competent legal services to the weaker sections of the society on the basis of equal opportunity.
2. It issues guidelines to the state legal services authorities to implement the legal programmes and schemes throughout the country.

**Which of the statements given above is/are correct?**

- (a) Only 1
- (b) Only 2
- (c) Both 1 and 2
- (d) Neither 1 nor 2

**I.A.S. (Pre) 2013**

**Ans. (c)**

The National Legal Services Authority (NALSA) has been constituted under the Legal Services Authorities Act, 1987 to provide free Legal Services to the weaker sections of the society and to organize Lok Adalats for the amicable settlement of disputes. The objective of the National Legal Services Authority is to provide free and competent legal services to the weaker sections of the society on the basis of equal opportunity. It also gives instructions to State Legal Services Authorities and provides them with financial grants. The State Legal Services Authority is headed by the Chief Justice of the respective High Court, who is the Patron-in-Chief of the State Legal Services Authority.

**59. In India, Legal Services Authorities provide free legal services to which of the following type of citizens?**

1. Person with an annual income of less than Rs. 1,00,000.
2. Transgender with an annual income of less than Rs. 2,00,000.

3. **Member of Other Backward Classes (OBC) with an annual income of less than Rs. 3,00,000.**

4. **All Senior Citizens.**

**Select the correct answer using the code given below:**

- (a) 1 and 2 only                      (b) 3 and 4 only  
(c) 2 and 3 only                      (d) 1 and 4 only

**I.A.S. (Pre) 2020**

**Ans. (a)**

The sections of the society as enlisted under Section 12 of the Legal Services Authorities Act are entitled to Free Legal Service, they are :

- A member of SC or ST.
- A victim of trafficking in human beings or begar as referred to in Article 23 of the Constitution.
- A woman or child.
- An industrial worker.
- A Person in receipt of annual income less than the amount mentioned in the following schedule (or any other higher amount as may be prescribed by the State government.

The income ceiling limit prescribed u/s 12(h) of the Act for availing free legal services in different states has been stated below:

Andhra Pradesh - 3 Lakh

Arunachal Pradesh - 1 Lakh

Gujarat - 1 Lakh

Karnataka - 1 Lakh

Madhya Pradesh - 1 Lakh

Delhi - General 1 Lakh

Senior Citizen (2 Lakh)

Transgender (2 Lakh)

Thus, statement 1 is correct, while statement 3 is wrong because there is free legal service to SC and ST community but not for OBCs.

Provision for free legal services to members of transgender community upto 2 Lakh in Delhi. Hence, Statement 2 is correct. Senior citizen's eligibility for free legal aid depends on the Rules framed by the respected state government in this regard. In Delhi, for example, senior citizens are eligible for free legal aid subject to a Prescribed ceiling of annual income. Therefore, not all senior citizens are eligible for free aid. Hence, statement 4 is wrong. So the correct answer is the option (a).

60. **Which of the following is not included in the Directive Principles of State Policy?**

- Prohibition of Liquor
- Right to Work

- Equal Wage for Equal Work
- Right to Information

**U.P.P.C.S. (Pre) 2006**

**U.P.P.C.S. (Mains) 2010**

**Ans. (d)**

The Right to Information (RTI) emerges as a legal right under the Right to Information Act, 2005. However, Article 39(d) deals with equal pay for equal work for both men and women, and Article 39(a) deals with adequate means of livelihood. Article 47 states that it will be the duty of the state to raise the level of nutrition and the standard of living and to improve public health.

61. **Which one of the following is a Directive Principle of the State Policy?**

- Uniform Civil Code
- Freedom of the Press
- Freedom of the Religion
- Equality Before Law

**U.P.P.C.S. (Mains) 2010**

**U.P.P.S.C. (GIC) 2010**

**Ans. (a)**

Article 44 mentioned that the state shall endeavour to secure for the citizens a Uniform Civil Code throughout the territory of India.

62. **Identify the items included in the Directive Principles of State Policy.**

- Prohibition of Consumption of Liquor**
- Prohibition of employment of children in factories or mines**
- Prohibition of beggar or forced labour**
- Prohibition of untouchability**

**Select the correct answer with the help of the code given below:**

**Code :**

- 1 and 2
- 1, 2 and 3
- Only 1
- 2, 3 and 4

**U.P.P.C.S. (Mains) 2002**

**Ans. (c)**

Article 47 of the Directive Principles of State Policy underscores that it is the duty of the State to raise the level of nutrition and the standard of living and to improve public health. The State shall endeavour to bring about prohibition on the consumption except for medicinal purposes of intoxicating drinks and of drugs which are injurious to health, whereas prohibition of employment of children in factories or mines, prohibition of beggar or forced labour, and prohibition of untouchability are mentioned under Article 24, 23 and 17 respectively of Fundamental Rights.